

Executor Roadmap — Estate of Margaret Chen

Generated by ExpectedEstate | Illustrative sample with fictionalized details | Not legal advice

State: California | Path: Formal Probate (estate above \$208,850 small-estate threshold) | Will: Yes

Estimated timeline: 9–14 months | 42 tasks across 6 stages

STAGE 1 — SECURE & NOTIFY (Weeks 1–4)

- Order 10 certified death certificates 3–5 days
- Lodge the original will with the Superior Court within 30 days (Prob. Code § 8200) 1 day · Court required
- Secure the residence, vehicles, and valuables; notify homeowner's insurer 2–4 hours
- Notify Social Security, pension, and banks of the death 2–3 hours

STAGE 2 — COURT FILING (Weeks 2–8)

- Prepare and file Petition for Probate (DE-111) 2–4 hours · Court required
- Mail Notice of Petition to Administer Estate (DE-121) to all heirs ≥15 days before hearing 1 day · Court required
- Publish notice in an adjudicated newspaper (3 times before hearing) 1 hour
- Attend hearing; receive Letters Testamentary (DE-150) Court date

STAGE 3 — AUTHORITY & ADMINISTRATION

- Obtain EIN for the estate (IRS Form SS-4) 30 minutes
- Open an estate bank account 1–2 hours
- Notify the Franchise Tax Board and assessor (change-in-ownership) 1 hour · Court required

STAGE 4 — ASSET INVENTORY (Months 2–4)

- File Inventory & Appraisal (DE-160) within 4 months of Letters 2–6 hours · Court required
- Send the Inventory to the probate referee for non-cash assets —
- Record date-of-death values for every account 2–4 hours

STAGE 5 — CREDITOR CLAIMS (Months 4–8)

- Creditor claim window runs 4 months from Letters (Prob. Code § 9100) Waiting period
- Review, allow, or reject each Creditor's Claim (DE-172) Per claim
- Notify Medi-Cal / DHCS Estate Recovery if applicable 30 minutes · Court required

STAGE 6 — FINAL DISTRIBUTION (Months 9–14)

- Prepare Final Account and Report of Executor (or obtain written waivers) 4–10 hours
- File Petition for Final Distribution; serve notice on all beneficiaries 2–4 hours · Court required
- Distribute assets, obtain receipts, file Ex Parte Petition for Final Discharge 1–2 months